

		he brought the instant motion for leave to file the cross-complaint after he “organized the relevant facts and legal basis for my claims.” The court continues the 8/3/26 CMC to 11/16/26 at 8:45am in Dept. C24. Defendant shall give notice.
307	<i>Credit Line Capital Group, Inc. vs. Liu</i>	The motion of plaintiff Credit Line Capital Group, Inc., for an order correcting a clerical error in the judgment entered on April 9, 2026 nunc pro tunc is GRANTED IN PART. The court checks the box under 5(a) indicating that defendants’ names are continued on attachment 5a. The court also strikes attachment 6a and any reference thereto. The clerk shall give notice.
308	<i>Christiansen vs. Arellano</i>	The motion for entry of stipulated judgment filed by defendant/cross-complainant Breanna Arellano (Arellano) against plaintiff/cross-defendant James Christiansen and cross-defendant Speak Easy Social Club, LLC (collectively, Cross-Defendants) is DENIED. Cross-Defendants’ evidentiary objections are OVERRULED. As to Arellano’s evidentiary objections, the cited testimony and objections are not relevant to the disposition of the motion. The court thus declines to rule on the objections. Arellano relies on Code of Civil Procedure sections 664.6 and 187, and <i>Rooney v. Vermont Investment Corp.</i> (1973) 10 Cal.3d 351, in support of her request for entry of judgment. The summary procedure of Code of Civil Procedure section 664.6 (Section 664.6) to obtain judgment can

be utilized only where a settlement is reached in “*pending litigation*.” It cannot be utilized to enforce a settlement reached *before* suit was filed. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) ¶12:952.2, citing *Kirby v. Southern Calif. Edison Co.* (2000) 78 Cal.App.4th 840, 845 and *Housing Group v. United Nat’l Ins. Co.* (2001) 90 Cal.App.4th 1106, 1108.)

Here, Section 664.6 is inapplicable as the settlement agreement between the parties was reached prior to any lawsuit being filed. Although the court currently has jurisdiction over the parties and the claims pertaining to the settlement agreement by virtue of Arellano’s cross-complaint, because the settlement agreement was reached prior to the instant action being filed, Arellano cannot rely on Section 664.6 to obtain judgment against Cross-Defendants.

Arellano also failed to show entry of judgment is proper under Code of Civil Procedure section 187 (Section 187), or the court’s inherent equitable powers. Under Section 187, a court has inherent power to use “all the means necessary” to carry its jurisdiction into effect. Arellano argues summarily that the court’s authority under Section 187 includes enforcement of agreements that expressly provide for entry of judgment, but she fails to cite any authority supporting this contention in the context of this case, particularly where the settlement agreement was executed prior to litigation. She also offers no authority showing the court is mandated to grant the relief requested. Here, Arellano has filed a cross-complaint which seeks the same relief sought by this motion. The issue of Cross-Defendants’ default and breach of the settlement agreement seems more appropriately decided by way of motion for summary judgment or trial.

		Arellano also failed to show entry of judgment is proper under <i>Rooney v. Vermont Investment Corp.</i> (1973) 10 Cal.3d 351. <i>Rooney</i> involved a written stipulation for settlement reached <u>during a pending lawsuit</u>. (See <i>Rooney</i>, supra, 10 Cal.3d at 356 and fn 1.) Here, the settlement agreement was reached before suit was filed. The facts in <i>Rooney</i> are thus distinguishable from those in the instant matter. Arellano fails to show how, under these circumstances, judgment is properly entered pursuant to the holding in <i>Rooney</i>. Because the motion is properly denied on the foregoing grounds, the court does not reach the parties' remaining arguments pertaining to the validity of the amendment and judgment amount sought, or prevention of performance. Case management conference remains on calendar. Counsel for Cross-Defendants shall give notice.
309	<i>Complete Water and Fire Restoration, LLC vs. Long</i>	The motion of defendant James Long moves for an order setting aside the default and any default judgment against him is DENIED. Defendant James Long moves under Code Civ. Proc. §§ 473(b) and 473.5 for an order setting aside the default and any default judgment against him. Plaintiff Complete Water and Fire Restoration, LLC, dba Service Master Recovery by CWFR opposes the motion. Plaintiff's evidence indicates that defendant was properly served with the summons and complaint on January 9, 2026. Defendant fails to carry his burden to demonstrate service was ineffective or did not occur. Defendant also contends that the default should be set aside under Code Civ. Proc. § 473.5.